

		Defendants correctly argue the motion is essentially a motion for reconsideration. A motion for reconsideration must be filed within 10 days after notice of the ruling being challenged is served, and he must make a showing of new facts or circumstances that could not have been raised earlier. (Code of Civ. Proc., § 1008.) The “new or different facts, circumstances or law” must be information that the moving party could not, with reasonable diligence, have discovered or produced at the first hearing. (<i>New York Times Co. v. Sup.Ct. (Wall St. Network, Ltd.)</i> (2005) 135 Cal.App.4th 206, 212-213.) Here, a notice of entry of judgment concerning the court’s order on the parties’ cross-MSJs was served over six years ago and a notice of ruling on Defendants’ motion to enforce the settlement were served and filed over four years ago. A motion for reconsideration of either order is untimely. Farah also fails to demonstrate that there are new facts or circumstances that could not have been raised before. The same evidence was available when the court granted Defendants’ summary judgment motion, denied Farah’s summary judgment motion and granted Defendants’ motion to enforce the settlement. Farah argues he does not ask the court fully reconsider the Order entered on 5/25/2019, but the fact that the Order itself does not support Defendants’ position that the Order actually awarded a prescriptive easement to Defendants and their “invitees,” rather than merely state the Court’s observation that Defendants sought a “previously prescriptive easement for sue by them and their invitees.” However, the court has the inherent authority to correct judicial error in its <i>interim orders</i> at any time <i>prior to final judgment</i>. (<i>Le Francois v. Goel</i> (2005) 35 Cal.4th 1094, 1096–1097, 1105 & fn. 4, 1107–1108, emphasis added.) Final judgment was entered in this case long ago on 6/18/2019. (ROA No. 235.) The motion is DENIED
17	2024-01431664 <i>Wade vs. General Motors LLC</i>	Motion to Compel Deposition (Oral or Written) (Continued from 11/6) Plaintiff Julie Wade’s Motion to Compel Deposition and Production of Documents is GRANTED in part and DENIED in part. “If, after service of a deposition notice, a party to the action, without having served a valid objection under Section 2025.410, fails to appear for examination, or to proceed with it, or to produce for inspection any document, electronically stored information, or tangible thing described in the deposition notice, the party giving the notice may move for an order compelling the deponent’s attendance and testimony, and the production for inspection of any document described in the deposition notice.” (Code Civ. Proc. § 2025.450(a) (cleaned up).) When the deponent has failed to appear, the motion to compel must be accompanied by a declaration stating that the moving party “has contacted the deponent to inquire about the nonappearance.” (Code Civ. Proc. § 2025.450(b)(2).)

When the deponent has failed to produce documents described in a deposition notice, the motion to compel must be accompanied by a declaration showing “good cause”, i.e. specific facts justifying inspection of the documents described in the notice, and a separate statement. (Code Civ. Proc. § 2025.450, subd. (b)(1); Cal. Rules of Court, rule 3.1345, subdiv. (a)(5).)

Here, on 3/6/24, Plaintiff sent a letter to Defendant requesting proposed dates when Defendant would be available for deposition. (Goldsmith Decl. ¶ 3, Ex. 1.) On 3/21/24, Plaintiff served a Notice of Deposition of GM’s PMQ With Production of Documents (Deposition Notice), unilaterally scheduling the deposition for 4/10/24; however, the text of the Deposition Notice requested alternate dates if the noticed date was unavailable. (Goldsmith Decl. ¶ 4, Ex. 2; Bowton Decl., ¶ 2.) The Deposition Notice was accompanied by cover letter, which stated Plaintiff remained willing to move the date if it was inconvenient for Defendant and requested proposed alternate dates. (Goldsmith Decl. ¶ 5, Ex. 3.) On 4/3/24, Defendant timely served objections to the Deposition Notice. (Goldsmith Decl., at ¶ 6, Ex. 4; Bowton Decl., ¶ 3.) While Defendant objected to the deposition categories listed, it agreed to produce a PMQ on many of those categories subject to certain terms and at a mutually agreed upon time and place. (Goldsmith Decl., Ex. 4.) Similarly, while Defendant objected to each document request, it identified and referred Plaintiff to the specific documents that would be produced, and had already been produced, in response to Plaintiff’s First Set of Requests for Production of Documents. (*Ibid.*) Notably, Defendant’s response did not include alternate dates for the deposition. (Id., at ¶ 6, Ex.4.) On 4/10/24, Defendant did not appear for the noticed deposition. (Id. at ¶ 7.)

Between 5/6/24 and 7/2/24, the parties traded a few meet and confer letters about the deposition and document request. (Goldsmith Decl., ¶¶ 8-10, Exs. 5-7; see Bowton Decl., ¶¶ 4-5.) The parties did not resolve their issues, and Defendant did not offer alternate dates. (Goldsmith Decl. ¶ 10, Ex. 7.) A year later, on 7/3/25 and 8/8/25, Plaintiff called and emailed Defendant requesting dates for the deposition and reiterating Plaintiff’s position regarding the deposition categories and document requests. (Id., ¶¶ 11-12, Exs. 8-9.) Defendant did not respond. (Id., ¶ 13.) Plaintiff filed the instant motion 8/12/25.

The court finds Plaintiff adequately met and conferred prior to filing the instant motion. The court also finds Defendant failed to appear for a duly noticed deposition and thereafter failed to offer any alternate dates for its deposition.

Plaintiff’s motion sets forth sufficient facts to justify compelling Defendant to produce the documents sought in the deposition notice, with the exception of Request No. 12, which seeks all documents evidencing all changes to the design of the subject vehicle. The court finds this request is overbroad as it is not limited to the issues Plaintiff complained of. Request no. 13 is sufficient for this purpose.

		Accordingly, the motion is GRANTED in part. Defendant is ORDERED to appear and give testimony at his deposition concerning each deposition category listed in the notice of deposition within 10 days. Defendant is further ORDERED to produce documents as to each document request listed Request for Production of Documents attached to the Notice of Deposition, except No. 12. Thus, the motion is DENIED as to Request for Production No. 12.
--	--	---